

protectorship, the deed of disclaimer must, by the Fines and Recoveries Act, be enrolled in Chancery (*h*).

*Secondly. Of Acceptance.*¹

1. **How trust accepted.**—A trustee may *accept* the office either by signing the trust deed (*i*), or by an express declaration of his assent (*j*), or by proceeding to act in the execution of the duties of the trust.

(*h*) 3 & 4 W. 4, c. 74, s. 32.

(*j*) See *Doe v. Harris*, 16 M. & W.

(*i*) See *Buckeridge v. Glasse*, 1 Cr. 517.
& Ph. 131, 134.

¹ *Acceptance.*—A common mode of acceptance is that of signing the trust; *Field v. Arrowsmith*, 3 Humph. 442; *Roberts v. Moseley*, 51 Mo. 284; *Bixler v. Taylor*, 3 B. Mon. 362; *Flint v. Clinton Co.* 12 N. H. 432; acting as trustee is a sufficient acceptance; *Redenour v. Wherritt*, 30 Ind. 485. No particular formality is required, but acts fairly implying a consent are sufficient and taking possession of the property is an act of this kind; *Scull v. Reeves*, 2 Green Ch. 84; 29 Am. Dec. 694. Parol evidence is admissible to prove the acceptance of the trust; *Pond v. Hine*, 21 Conn. 519; *Penny v. Davis*, 3 B. Mon. 314; *Crocker v. Lowenthal*, 83 Ill. 579; *Roberts v. Moseley*, 64 Mo. 507; *Hanson v. Worthington*, 12 Md. 418; *Redenour v. Wherritt*, 30 Ind. 485; every voluntary act relating to the trust indicates acceptance; *Lewis v. Baird*, 3 McLean, 56; unless some other reason for it appear; *Judson v. Gibbons*, 5 Wend. 224; *Carter v. Carter*, 10 B. Mon. 327; the bringing a suit as trustee is evidence of acceptance; *Taylor v. Atwood*, 47 Conn. 498; *O'Neill v. Henderson*, 15 Ark. 235; 60 Am. Dec. 568. At common law a trust under a will might be accepted and the trustee enter upon his duties before the will was allowed, but in most of the states there are statutes requiring the proof of the will in the proper Probate Court. If a person named as trustee in a will neglect to give bonds and qualify it has the effect of a disclaimer; *Deering v. Adams*, 37 Me. 265; *Luscomb v. Ballard*, 5 Gray, 403; *Sawyer's App.* 16 N. H. 459; *Gaskill v. Gaskill*, 7 R. I. 478; *Mitchell v. Rice*, 6 J. J. Marsh, 625; *Johnson's App.* 9 Barr. 416; but failure to give a bond may not take away the legal title; *Gardner v. Brown*, 21 Wall. 36. Where there are no controlling statutes, if the same one is named as executor and trustee, a proving of the will by him will be a sufficient acceptance; *Baldwin v. Porter*, 12 Conn. 473; *Hanson v. Worthington*, 12 Md. 418; that is where, in consequence of being an executor, he is to act as a trustee; *Knight v. Loomis*, 30 Me. 204; *De Peyster v. Clendinning*, 8 Paige, 295; *Wilson's Est.* 2 Pa. St. 325; *Williams v. Conrad*, 30 Barb. 524; yet if the offices are intended to be independent and distinct the same acceptance is required of the trustee; *Deering v. Adams*, 37 Me. 265; *Wheatley v. Badger*, 7 Pa. St. 459; *Worth v. M'Aden*, 1 Dev. & B. Eq. 209; *Judson v. Gibbons*, 5 Wend. 226. It may be necessary for the court to decide whether the executor is to be the trustee; *Carson v. Carson*, 6 Allen, 397; *Sawyer's App.* 16 N. H. 459; *Howard v. Peace Soc.* 49 Me. 286; *Wheeler v. Perry*, 18 N. H. 307; where no one is named as trustee, the executor is to act as such; *Pettingell v. Pettingell*, 60 Me. 412; *Richardson v. Knight*, 69 Me. 285. The bond of executor having other duties, as such executor will